

HEADNOTE

“If a statement of claim is to be served under The Hague Convention and, according to the competent Chinese authority, the defendant “refuses to accept the documents,” the Court may deem the steps taken so far to be sufficient for good service.”

COURT
Local Division in Düsseldorf

PROCEEDINGS
Procedural order

PATENT
EP 2 593 025 B1

Laparoscopic morcellator

KEYWORDS

R. 275.2 RoP

good service

alternative method

refusal to accept documents

Rule 275 Service of the Statement of claim by an alternative method or at an alternative place

SUMMARY

The Local Division in Düsseldorf issued a procedural order. The patent at issue relates to a laparoscopic morcellator. According to the headnotes of the decision, when a defendant refuses to accept service of a statement of claim under The Hague Convention and the Chinese authority confirms this refusal, the Court may consider the service steps already taken to be effective.